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**MEMORANDUM**

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**TO:** Mayor Patrick Collins, and City Council  
**FROM:** TJ Barttelbort, Purchasing Manager   
**DATE:** May 21, 2024  
**SUBJECT:** Professional Services Agreement between the City of Cheyenne and Just Be You, Inc. dba Star Playgrounds, for the Saddle Ridge Playground Design and Installation Project

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Three (3) Proposers responded to Request for Proposal (RFP) #11-24, for the Saddle Ridge Playground Design and Installation Project.

The proposals were received from:

1. Just Be You, Inc. dba Star Playgrounds
2. Great Western Installations, Inc
3. Dakota Playground

The Request for Proposal dictated that proposers were given the opportunity to submit proposals for a \$200,000 price point, and a \$300,000 price point for playground design proposals. The three (3) Proposers submitted a total of eight (8) unique playground designs that were evaluated independently.

Upon review of the proposals by the evaluation panel, the group has recommended acceptance of the proposal submitted by Just Be You, Inc. dba Star Playgrounds (Playground Design Option – C, Rendering Included), for a project award amount of \$300,000.00.

Basis for award was based on a Qualifications and Cost based review and scoring of proposals.

Playground installation to be completed by November 29, 2024.

**Funding:** 013-21-2111-45-43702  
(Development Impact Fees / Saddle Ridge Park Enhancements)

# 3D DESIGN RENDERINGS



Saddle Ridge  
Option C

Sales Representative:  
**STAR**  
Playgrounds  
stellar design and installation

Equipment Manufacturers:  
**PLAYWORLD**  
The world needs play.

**Berliner**  
Play equipment for life

**LAPPSET**

**earthscape**

**EXOFIT**  
Outdoor Fitness

City Contract No. \_\_\_\_\_

**PROFESSIONAL SERVICES AGREEMENT**  
for  
**SADDLE RIDGE PLAYGROUND DESIGN AND INSTALLATION**

This Professional Services Agreement (“Agreement”) is made and entered into by and between the **City of Cheyenne**, located at **2101 O’Neil Avenue, Cheyenne, Wyoming 82001** (“City”), and **Just Be You, Inc. dba Star Playgrounds**, located at **9892 Titan Park Circle, Unit 1, Littleton, Colorado 80125** (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

**RECITALS**

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the **Saddle Ridge Playground Design and Installation**, in accordance with **City of Cheyenne Request for Proposal (RFP) #11-24**, incorporated herein by reference, and the **Consultant’s submitted proposal**, incorporated herein by reference.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed by **November 29, 2024**.

3. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant **Three Hundred Thousand Dollars (\$300,000.00)**, as stated in **Exhibit A – Price Proposal**.

4. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. **DRUG-FREE WORKPLACE**

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to

alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees, or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

**Commercial General Liability Insurance**

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

**Workers' Compensation**

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

**Professional Liability Insurance**

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

#### **Additional Insurance Information**

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26  
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT  
With every monthly billing, the Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT  
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES  
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT  
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES  
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
  - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
  - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION  
The term of this Agreement shall be from date of execution to **November 29, 2024.** The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Exhibit A – Price Proposal, consisting of two (2) pages, Request for Proposal RFP 11-24, issued via OpenGov E-Procurement Portal, Addendum One, issued May 1, 2024 3:26 PM via OpenGov E-Procurement Portal, Addendum Two, issued May 8, 2024 7:52 AM via OpenGov E-Procurement Portal and the Consultant's submitted proposal, consisting of twenty-eight (28) pages, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: \_\_\_\_\_  
Patrick Collins, Mayor

Attest:

\_\_\_\_\_  
Kristina F. Jones, City Clerk

Date: \_\_\_\_\_

Consultant,  
**Just Be You, Inc. dba Star Playgrounds**

By: \_\_\_\_\_

Print Name: \_\_\_\_\_

Date: \_\_\_\_\_



RFP 11-24 Saddle Ridge Playground Design and Installation

To Whom It May Concern:

Enclosed you will find costs and not to exceed pricing for Option C for the \$300,000 tier to correspond with the option presented in our technical proposal. Brad Barclay is the Account Manager and Erin Starr is the Chief Operating Officer who will sign and acknowledge this proposal. Just Be You Inc dba Star Playgrounds is a S-Corp and we establish that all contractual responsibilities shall rest on our company and our one consultant neither of which are a subsidiary or affiliate with limited resources.

The enclosed quotes are certified to be valid for at least 120 days.

Erin Starr

Chief Operating Officer

Star Playgrounds

9892 Titan Park Circle, Unit 1 Littleton, CO 80125

303-791-7626 erin@starplaygrounds.com

Just Be You, Inc. dba Star Playgrounds

9892 Titan Park Circle, Unit 1 ☆ Littleton, Colorado 80125

office: 303-791-7626 ☆ fax: 303-791-3314 ☆ www.starplaygrounds.com



# QUOTATION

Quote Number: Q12505C  
Quote Date: May 16, 2024  
Sales Rep: Brad Barclay  
brad@starplaygrounds.com

Playground Equipment \* Site Furnishings \* Shade Structures \* Surfacing

| Project:                                                             | Proposed For/Bill To:                                                                                                          | Contact Name   |                               |
|----------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------------|
| Saddle Ridge Park RFP 11-24<br>6717 Laramie St<br>Cheyenne, WY 82001 | City of Cheyenne<br>Community Recreation & Events<br>2101 O'Neil Avenue, Rm 302<br>Cheyenne, WY 82001<br><br>Cust ID: Cheyenne | TJ Barttelbort |                               |
|                                                                      |                                                                                                                                | Phone          | Email                         |
|                                                                      |                                                                                                                                | 307-773-1045   | tbarttelbort@cheyennecity.org |

| Qty | Item | Description                                                                                                                              | Unit Price    | Amount        |
|-----|------|------------------------------------------------------------------------------------------------------------------------------------------|---------------|---------------|
|     | EFI  | Price includes equipment, freight and factory certified installation.                                                                    |               |               |
| 1   | PWCH | Playworld Systems Custom Design featuring large tower, cup and 2 bay swings                                                              | \$ 225,825.00 | \$ 225,825.00 |
| 1   |      | Valued Client Discount                                                                                                                   | \$- 35,825.00 | \$- 35,825.00 |
| 1   |      | SYNTipede X43 Play Platinum STX43_PLAY, SYNPlay 48 (NP) FL Blue TXT48, Envirofill 16/30, Brock PowerBasePLAY® XL - PLB50XL over roadbase | \$ 110,000.00 | \$ 110,000.00 |

See Terms & Conditions on last page

Star Playgrounds  
9892 Titan Park Circle, Unit 1, Littleton, CO 80125  
Office: 303.791.7626 www.starplaygrounds.com

|              |                      |
|--------------|----------------------|
| Subtotal     | \$ 300,000.00        |
| Sales Tax    |                      |
| <b>TOTAL</b> | <b>\$ 300,000.00</b> |